

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is executed on this 22nd day of July, 2026 ("Effective Date") by and between Alpha Tech Solutions Pvt Ltd ("Client") and Beta Retail Enterprises Pvt Ltd ("Service Provider").

1. SCOPE OF SERVICES

Service Provider agrees to render software development, cloud maintenance, and artificial intelligence integration services as outlined in Statement of Work executed by the parties from time to time.

2. PAYMENT TERMS & MSME SCHEDULE (HIGH RISK - MSME ACT §15 VIOLATION)

Invoices shall be issued at the end of each calendar month. Client agrees to process and pay all undisputed invoice amounts within Ninety (90) days from the date of invoice receipt. Payment beyond 45 days shall not attract any statutory interest or penalty under the MSMED Act 2006.

3. POST-TERMINATION NON-COMPETE RESTRAINT (HIGH RISK - ICA §27 VOID AB INITIO)

Service Provider, its key personnel, and officers agree that for a period of Two (2) years following the termination or expiration of this Agreement for any reason, Service Provider shall not directly or indirectly engage in, consult for, advise, or establish any competing software or legal technology business within the territory of India.

4. UNILATERAL TERMINATION WITHOUT CAUSE (HIGH RISK - UNBALANCED RESTORATION)

Client reserves the absolute right to terminate this Agreement immediately without cause at any time upon written email notification. Service Provider may only terminate for cause upon providing 180 days prior written notice and settling all accrued claims.

5. UNLIMITED INDEMNIFICATION & CONSEQUENTIAL DAMAGES (MEDIUM/HIGH RISK)

Service Provider shall fully defend, indemnify, and hold harmless Client, its directors, and affiliates from and against any and all claims, liabilities, losses, damages, costs, and expenses (including indirect, special, punitive, and consequential damages) arising out of or relating to the services rendered.

6. NON-SOLICITATION & LIQUIDATED PENALTY (MEDIUM/HIGH RISK - ICA §74 PENALTY)

Neither party shall hire or solicit any employee of the other party during the term and for 12 months thereafter. Any breach shall incur mandatory liquidated damages of INR 50,000,000 payable within 7 days regardless of actual loss proved.

7. EXCLUSIVE FOREIGN JURISDICTION (MEDIUM/HIGH RISK - ICA §28 RESTRAINT)

This Agreement shall be governed by the laws of England and Wales. The courts located in London, UK shall have exclusive jurisdiction over any disputes arising out of or in connection with this Agreement, excluding Indian courts.

8. CONFIDENTIALITY & PROPRIETARY INFORMATION (SAFE)

Each party agrees to maintain strict confidentiality of all technical, financial, and business information disclosed during the term of this Agreement for a period of 3 years following disclosure.

9. INTELLECTUAL PROPERTY RIGHTS (SAFE)

All work product, code, documentation, and deliverables created under this Agreement shall belong exclusively to Client upon full payment of applicable fees.

10. FORCE MAJEURE (SAFE)

Neither party shall be liable for failure to perform its obligations if such failure arises from acts of God, war, severe natural disasters, or government restrictions beyond reasonable control.

11. GOVERNING LAW & SEVERABILITY (SAFE)

If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be severed and the remaining provisions shall continue in full force and effect.

12. ENTIRE AGREEMENT (SAFE)

This document constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements, whether oral or written.